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DENNIS A. MEDEROS, OF COUNSEL
JOSEPH F. SOARES, RETIRED

 **COPY**

July 9, 2026

U. S. MAIL and VIA EMAIL
ncunningham@wtjlaw.com

Niki Cunningham
WHITNEY THOMPSON & JEFFCOACH
970 W. Alluvial Avenue
Fresno, California 93711

Re: Manuel Stephen Leal v. Ashley Garabedian, et al.
TCSC Case No. VCU327028

Dear Ms. Cunningham:

Enclosed is the 998 Offer as it pertains to the above-entitled matter.

Sincerely,

ORMONDE RASCON



Brandon M. Ormonde

BMO:av
Enclosure

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July 8, 2026

***THIS LETTER AND ITS CONTENTS AND ANY FURTHER CORRESPONDENCE PERTAINING
TO THE CONTINUING ATTEMPTS TOWARDS SETTLEMENT OF THIS MATTER IS MEANT
TO BE AND IS DEEMED INADMISSIBLE PURSUANT TO EVIDENCE CODE SECTION 1152.***

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Re: Manuel Stephen Leal v. Ashley Garabedian, et al.
TCSC Case No. VCU327028

Dear Ms. Cunningham:

My clients have had an opportunity to further review the documents and accountings as this matter has progressed. Concurrent with this offer, we are delivering a C.C.P. 998 offer that is consistent with the specific performance requested in the complaint. As an alternative, my clients wish to make the following monetary settlement offer in order to avoid the ongoing time and expenses associated with the complaint.

My client is prepared to offer the total sum of \$5,705,257.43 for the purchase of the Hazel J. Leal Revocable Trust ("Hazel's Trust") interest in the MANUEL C. LEAL & SON DAIRY PARTNERSHIP and the real property owned by Hazel's Trust and subject to the 2017 Settlement Agreement and Tenants-in Common Agreement with a release of all other claims by all parties (Civ. §1542). This offer is structured to provide the Co-Trustees and the Estate with immediate liquidity while adhering strictly to the governance established by the 2017 Settlement Agreement.

Valuation and Interest Reconciliation

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(559) 686-1514 (facsimile)

Attorneys for Plaintiff

SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF TULARE
VISALIA DIVISION

-oOo-

MANUEL STEPHEN LEAL,	) Case No. VCU3627028
	)
Plaintiff	) OFFER TO ALLOW JUDGMENT
	) (CCP § 998); ACCEPTANCE;
v.	) REQUEST TO ENTER JUDGMENT;
	) AS TO COMPLAINT
	)
ASHLEY GARABEDIAN, Successor	)
Co-Trustee of the HAZEL J. LEAL	)
REVOCABLE TRUST dated November	)
3, 2008; HAZEL SUSAN LEAL,	)
Successor Co-Trustee of the	)
HAZEL J. LEAL REVOCABLE TRUST	)
dated November 3, 2008; and	)
DOES 1-10, inclusive,	)
	)
Defendants.	)

TO: ASHLEY GARABEDIAN, Successor Co-Trustee of the HAZEL J.
LEAL REVOCABLE TRUST dated November 3, 2008, HAZEL SUSAN LEAL,
Successor Co-Trustee of the HAZEL J. LEAL REVOCABLE TRUST dated
November 3, 2008, and their attorneys of record TIMOTHY THOMPSON
and NIKKI CUNNINGHAM, and the law office of WHITNEY, THOMPSON
AND JEFFCOACH:

For the purpose of Under Code of Civil Procedure Section
998, PLAINTIFF, MANUEL STEPHEN LEAL ("Plaintiff") offers to

1 allow judgment to be taken in this action, pertaining to the
2 Complaint filed by Plaintiff, as follows:

- 3 1. To employ Stanley Xavier of Correia-Xavier within
4 thirty (30) days of the judgment to perform an
5 appraisal of the Defendants' interest in the Real
6 Property as of Hazel Leal's date of death pursuant to
7 the terms of the Settlement Agreement and Tenants-in
8 Common Agreement with discounts applied as determined
9 by Correia-Xavier for the purpose of sale of the Real
10 Property to Plaintiff.
- 11 2. To employ MOSS ADAMS within thirty (30) days to perform
12 an appraisal of the Defendants' interest in the
13 Partnership as of Hazel Leal's date of death pursuant
14 to the terms of the Settlement Agreement and
15 Partnership Agreement with discounts applied as
16 determined by MOSS ADAMS for the purpose of sale of the
17 Partnership real Property to Plaintiff.

18 For the purposes of this offer, the capitalized terms above
19 have the following meaning:

- 20 1. "Real Property" shall mean the 652.02 acres subject to
21 sale pursuant to that Settlement Agreement and Mutual
22 Release dated December 7, 2017 and the Tenants-in-Common
23 Agreement.
- 24 2. "Partnership" shall mean the MANUEL C. LEAL & SON DAIRY
25 PARTNERSHIP.

26 If you accept this offer, please date and sign the
27 acceptance form below and file this paper with the Court Clerk,

28 ////